Section 7: Dispute Letter Template

[Your Full Name]
[Street Address]
[City, PA ZIP]
[Phone] | [Email]

[Date]

VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED
Tracking #: [Number]

[Provider Name]
Attn: Billing Department
[Provider Street Address]
[City, State ZIP]

Re: Dispute of Balance Bill, Account # [Account Number]
Date(s) of Service: [Dates]
Amount Disputed: $[Amount]

Dear Billing Manager:

I am writing to formally dispute the balance bill referenced above. I am disputing this amount in writing and request that you respond in writing.

1. Statutory Basis for Dispute

[Select the applicable statement and delete the others.]

[Option A, emergency services:] The services rendered were emergency services subject to the federal No Surprises Act, 42 U.S.C. § 300gg-111, Public Health Service Act §§ 2799A-1 through 2799A-3, and 45 C.F.R. § 149.110 (as well as ERISA protections pursuant to 29 U.S.C. § 1185e where applicable). Under 45 C.F.R. § 149.110, balance billing for emergency services is strictly prohibited and patient liability is capped at in-network cost-sharing amounts calculated via the Qualifying Payment Amount (QPA) or Medicare RVU benchmark standards (42 C.F.R. § 414.22).

[Option B, ancillary services at an in-network facility:] The services rendered were non-emergency services provided by an out-of-network ancillary provider (e.g., anesthesiology, radiology, pathology, neonatology, or diagnostic services) at an in-network facility under 45 C.F.R. § 149.120 and 45 C.F.R. § 149.410. Under 45 C.F.R. §

149.420, ancillary services are explicitly exempt from the notice and consent exception; therefore, no valid waiver could have been executed to waive balance billing protections.

[Option C, other non-emergency services:] The services rendered were non-emergency services provided by an out-of-network provider at an in-network healthcare facility. I did not execute a timely or compliant written notice and consent waiver under 45 C.F.R. § 149.420 at least 72 hours prior to the provision of services (or 3 hours prior for same-day appointments). [Describe the situation.]

Under 45 C.F.R. § 149.110–120 and 29 U.S.C. § 1185e, I am legally responsible only for my applicable in-network cost-sharing obligation. The healthcare plan and provider are mandated to resolve reimbursement disputes through the 30-day statutory open negotiation period and, if necessary, the Independent Dispute Resolution (IDR) mechanism pursuant to 45 C.F.R. § 149.510. Continued billing or pursuit of impermissible balance amounts may also constitute actionable fraudulent billing under 31 U.S.C. § 3729.

2. Pennsylvania Fair Credit Extension Uniformity Act (FCEUA) and Consumer Protection

To the extent that you or your representatives act as a creditor or debt collector attempting to collect this disputed balance, the Pennsylvania Fair Credit Extension Uniformity Act (FCEUA), 73 P.S. § 2270.1 et seq., governs your collection conduct. Demanding or attempting to collect unauthorized balance bills or amounts not lawfully owed constitutes an unfair and deceptive debt collection practice under 73 P.S. § 2270.4(a)-(b). Pursuant to 73 P.S. § 2270.4 and 73 P.S. § 201-9.2, a violation of the FCEUA constitutes a per se violation of the Pennsylvania Unfair Trade Practices and Consumer Protection Law (UTPCPL), 73 P.S. § 201-1 et seq., entitling consumers to statutory remedies, treble damages, and attorney's fees.

3. Demands & Requests

Please immediately:

a. Cease and desist all collection activity regarding this account—including telephone calls, collection letters, and referrals to external collection agencies—while this statutory dispute is pending (73 P.S. § 2270.4).
b. Correct the balance to reflect solely my lawful in-network cost-sharing obligation, or provide a detailed written explanation outlining the statutory basis for the disputed balance.
c. Confirm in writing that this account will not be reported to any consumer reporting agency as past due, delinquent, or in collection

during this dispute, and comply with all dispute reporting requirements under 15 U.S.C. § 1681s-2(b) and 73 P.S. § 2270.4(b)(5).
d. If this facility is a 501(c)(3) tax-exempt entity, provide your Financial Assistance Policy (FAP), plain-language summary, and FAP application, and maintain an extraordinary collection action hold pursuant to 26 U.S.C. § 501(r)(6).

Please provide a written response within 30 days of receipt. While awaiting resolution, the account remains formally disputed under federal and state law.

In the event of non-compliance, formal complaints will be submitted to the appropriate regulatory agencies:
- Pennsylvania Insurance Department, Consumer Services Bureau: 1-877-881-6388
- Pennsylvania Office of Attorney General, Bureau of Consumer Protection: 1-800-441-2555
- CMS / Federal No Surprises Act Help Desk and Enforcement Center (cms.gov/nosurprises)
- Consumer Financial Protection Bureau (CFPB) for debt collection and credit reporting violations

Enclosures:
- Copy of balance bill (highlighted)
- Explanation of Benefits (EOB)
- Relevant medical and billing records
- [If applicable:] Notice and consent waiver documentation

Sincerely,

[Signature]
[Printed Name]

Statutory Compliance Checklist for Balance Bill Disputes

[ ] Emergency Services In-Network Cost-Sharing Cap Verification (45 C.F.R. § 149.110)
[ ] Out-of-Network Ancillary Provider Notice & Consent Exception Audit (45 C.F.R. § 149.420)
[ ] Open Negotiation & Independent Dispute Resolution Initiation Track (45 C.F.R. § 149.510)
[ ] Pennsylvania FCEUA Collection Cease & Desist Order Issued (73 P.S. § 2270.4)
[ ] 501(r) Extraordinary Collection Action Hold Audit (26 U.S.C. § 501(r)(6))
[ ] Credit Bureau Disputed Status Notification Compliance (15 U.S.C. § 1681s-2(b); 73 P.S. § 2270.4(b)(5))
[ ] Pennsylvania Statute of Limitations Expiration Check (42 Pa.C.S. § 5525(a))